**No. 24-1414**

**UNITED STATES COURT OF APPEALS FOR THE FIRST CIRCUIT**

ELIZABETH F. WARNER,

Plaintiff-Appellant,

v.

LOUIS DEJOY, Postmaster General of the United States Postal Service,

Defendant-Appellee.

On Appeal from the United States District Court for the District of New Hampshire

# REPLY BRIEF OF APPELLANT ELIZABETH F. WARNER


Mark M. Whitney (1st Cir. No. 46659)
*Whitney Law Group, LLC*
*11 State Street*
*Marblehead, MA 01945*
*mwhitney@whitneylawgroup.com*

Kyle E. Cullen (1st Cir. No. 1212465)
*Whitney Law Group, LLC*
*11 State Street*
*Marblehead, MA 01945*
*kcullen@whitneylawgroup.com*
*(781) 631-4400*

# TABLE OF CONTENTS

**Page**

TABLE OF AUTHORITIES .....ii

INTRODUCTION ..... 1

REPLY ARGUMENT ..... 1

I. The USPS Misstated the Applicable Legal Standard Throughout its Brief – Ms. Warner Is Not Required to "Prove" Pretext, She Merely Needs to Show a Potential Jury Question .....2

II. The Success of USPS's Position Depends on the Veracity of One Key Witness – In So Arguing, Both the USPS and the Lower Court Made Improper Credibility Determinations .....4

CONCLUSION ..... 4

CERTIFICATE OF COMPLIANCE .....6

CERTIFICATE OF SERVICE ..... 7

# TABLE OF AUTHORITIES

**Cases:** **Page(s)**

*Ahmed v. Johnson*,
752 F.3d 490 (1st Cir. 2014) .....3

*Taite v. Bridgewater State Univ., Bd. of Trustees*,
999 F.3d 86 (1st Cir. 2021) .....3

# INTRODUCTION

The Plaintiff-Appellant, Elizabeth F. Warner ("Ms. Warner"), submits this reply in response to the opposition brief of the Defendant-Appellee, Louis DeJoy, Postmaster General of the United States Postal Service ("USPS"), in an action for employment discrimination arising from the USPS's unlawful failure to promote to two separate postmaster positions within eight months in 2018.

# REPLY ARGUMENT

Ms. Warner relies on the arguments in her main brief and submits this reply to address key issues raised in the USPS's opposition brief. First, the USPS seeks to impose the wrong legal standard on Ms. Warner by claiming that she did not "prove" or "establish" pretext. That is far from the applicable standard, and she is not required to prove her claim now. Second, the USPS has compounded the lower court's error by also relying so heavily on the veracity of its one primary witness, Ms. Kathleen Hayes ("Ms. Hayes"). For the USPS's arguments to succeed and for the lower court to be affirmed, one must necessarily conclude that Ms. Hayes is credible. This pivotal determination is for the jury to decide. Third, this Court should affirm the lower court's finding that Ms. Warner's claim for failure to promote to the Durham Postmaster position is not time-barred. The lower court properly relied upon the clear precedent of this Court in rendering this portion of

its decision. Fourth, this Court should exercise its discretion to ensure that the federal sector age discrimination standard is applied to Ms. Warner's case.

## I. The USPS Misstated the Applicable Legal Standard Throughout its Brief – Ms. Warner Is Not Required to "Prove" Pretext, She Merely Needs to Show a Potential Jury Question

Throughout its brief, the USPS repeatedly argues that Ms. Warner failed to "prove" or "establish" pretext. While this may be the proof standard at trial, this matter comes before this Court on a de novo review of a summary judgment order. Thus, the USPS grossly overstates Ms. Warner's burden at this point in the proceedings. (USPS Brief p. 15, 28–29) In fact, all Ms. Warner needs to do is show that material factual disputes exist that should be decided by a jury. Especially when construing inferences in favor of Ms. Warner, she more than met her limited burden to defeat summary judgment.

USPS seeks to raise the bar that Ms. Warner must clear to have a jury of her peers weigh the merits of her claims. For example, the USPS asserts the following at various points in its brief:

- "Warner Has Failed to Prove Pretext." (USPS Brief p. 29, Point Heading A5 (emphasis added)).
- "At the final step of the analysis, Warner must prove that the Postal Service's nondiscriminatory justification for its hiring decisions was

pretextual and the real reason was illegal discrimination." (USPS Brief p. 15 (emphasis added)).

- "Accordingly, Warner bore the burden of showing that the reasons Hayes articulated in support of the hiring decision were pretextual, which the court below held that she failed to do. (USPS Brief p. 22–23 (emphasis added)).

In contrast to the USPS's contentions, Ms. Warner does not need to "prove" or have conclusively "established" pretext at the summary judgment stage of this case. (USPS Brief p. 22–23, 29) Ms. Warner only needs to demonstrate that there are genuine issues of material fact with respect to USPS's pretextual reasoning. *Taite v. Bridgewater State Univ., Bd. of Trustees*, 999 F.3d 86, 94 (1st Cir. 2021) ("Ultimately, to survive summary judgment, Taite does not need to prove her case . . ., but, instead, viewing the aggregate package of proof she offered, she 'need only show that [her] ability to meet [her] burden turns on a genuine issue of material fact . . .' 'Stated otherwise, we must determine if there is a convincing mosaic of circumstantial evidence that would allow a jury to infer intentional discrimination.'") (Internal citations omitted). "[S]ufficient evidence to support a finding of pretext, in combination with the with the plaintiff's prima facie showing, can suffice at times to raise an inference of discrimination that will defeat summary judgment." *Ahmed v. Johnson*, 752 F.3d 490, 503 (1st Cir. 2014) (vacating the

lower court's summary judgment ruling in favor of the employer because the plaintiff adequately demonstrated genuine material fact disputes).

Ms. Warner submits that this Court should remain cognizant of the USPS's overreach when considering its arguments about evidence of pretext. As explained in her main brief, Ms. Warner has presented the type of convincing mosaic of circumstantial evidence that would allow a jury to infer intentional discrimination.

## II. The Success of USPS's Position Depends on the Veracity of One Key Witness – In So Arguing, Both the USPS and the Lower Court Made Improper Credibility Determinations

In its brief, the USPS expends substantial effort to argue that Ms. Hayes did not commit perjury when they both caused her to file a materially false statement in support of the USPS's summary judgment motion.

## CONCLUSION

For the reasons set forth in Ms. Warner's main brief as well as those articulated above, Ms. Warner respectfully requests that this Honorable Court should:

- Reverse the lower court's dismissal of Ms. Warner's claims and send the case back to the District Court for further proceedings;
- Affirm the portion of the lower court's opinion which held that Ms. Warner's Durham Postmaster claim is not time-barred; and
- Clarify that Ms. Warner is entitled to have her age claims heard under the federal sector age discrimination standard.

Respectfully submitted,

/s/ Mark M. Whitney
MARK M. WHITNEY
*Whitney Law Group, LLC*
*11 State Street*
*Marblehead, MA 01945*
*P: (781) 631-4400*
*mwhitney@whitneylawgroup.com*

October 9, 2024

## CERTIFICATE OF COMPLIANCE

1. This document complies with the type-volume limit of Fed. R. App. P. 32(a)(7)(B) because, excluding the parts of the document exempted by Fed. R. App. P. 32(f):

   [X] this document contains 901 words.

2. This document complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because:

   [X] this document has been prepared in a proportionally spaced typeface using Typst 0.15.1 in 14-point Liberation Serif roman type.

/s/ Mark M. Whitney
Attorney for Plaintiff-Appellant
Elizabeth F. Warner
Dated: October 9, 2024

## CERTIFICATE OF SERVICE

I hereby certify that on October 9, 2024, I electronically filed the foregoing with the Clerk of the Court for the United States Court of Appeals for the First Circuit by using the appellate CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ Mark M. Whitney
Attorney for Plaintiff-Appellant
Elizabeth F. Warner
Dated: October 9, 2024